



Forestry Act 1981

1981 CHAPTER 39

An Act to amend the Forestry Act 1967, and for connected purposes. [27 July 1981]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Disposal of
land.

1967 c. 10.

1. In section 39 of the Forestry Act 1967, for subsection (2) (which enables the Minister to sell land in specified circumstances) there shall be substituted—

“(2) Subject to subsection (2A) below, the Minister may dispose for any purpose of land acquired by him under this section.

(2A) Subsection (2) above shall not apply in relation to land acquired under this section which is in the Forest of Dean; but the Minister may sell any such land if in his opinion it is not needed, or ought not to be used, for the purpose of afforestation or any purpose connected with forestry, and may exchange any such land for other land more suitable for either of the said purposes and may pay or receive money for equality of exchange.”

Compulsory
purchase
of land.

2. In section 40 of the Forestry Act 1967, for subsection (4) there shall be substituted—

“(4) The power of compulsory purchase under this Act shall not be exercisable in relation to land held inalienably by the National Trust or by the National Trust for Scotland.”

3. In section 41 of the Forestry Act 1967, after subsection (4) there shall be inserted—

Forestry Fund.

“(4A) There shall be paid out of the Forestry Fund into the Consolidated Fund such sums as the Ministers may from time to time with the approval of the Treasury direct.”;

1967 c. 10.

and subsection (7) (powers of investment) shall cease to have effect.

4. After section 8 of the Forestry Act 1967 there shall be inserted—

General duty of Ministers.

“General duty of Ministers.

8A. In performing their functions under this Act the Ministers shall have regard to the national interest in maintaining and expanding the forestry resources of Great Britain.”.

5. In section 2(1) of the Forestry Act 1967 (which provides that the Forestry Commissioners shall consist of a chairman and not more than nine other members) for the word “nine” there shall be substituted the word “ten”.

Number of Forestry Commissioners.

6.—(1) This Act may be cited as the Forestry Act 1981.

Short title, repeals and extent.

(2) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column.

(3) This Act does not extend to Northern Ireland.

SCHEDULE

Section 6.

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
1967 c. 10.	The Forestry Act 1967.	Section 39(4). Section 41(7).
1967 c. 86.	The Countryside (Scotland) Act 1967.	In section 59 the words from “ and he shall ” to the end.
1968 c. 41.	The Countryside Act 1968.	In section 23(3) the words from “ Either ” to the end. In section 24, subsection (3) and in subsection (5) the words “ and (3) ”.